

WELLS FARGO BANK v. SCHULTZ

21CF13622

PLAINTIFF'S MOTION TO DEEM MATTERS ADMITTED

This is a collections case. Before the Court is plaintiff's unopposed motion to deem matters admitted.

On 02/04/22, plaintiff caused to be served upon defendant by regular US mail a first set of Requests for Admission, using his current address of record. Defendant had 35 days from the mailing to provide a verified written response. (CCP §§ 1013 and 2033.250.) Defendant did not timely (or ever) comply. (See Gavrilescu Decl. Para 3.)

Pursuant to CCP §2033.280(b), the party propounding RFAs may "move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction." The trial court "shall" grant the motion unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response in substantial compliance with Section 2033.220. (See *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 971; *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777-778.)

The matters contained in the RFA are hereby deemed admitted, subject to counsel's confirmation that defendant did not serve substantially complaint responses before the hearing. In addition to the order deeming admitted all relevant matters within the RFAs, the moving party is entitled as a matter of law to monetary sanctions. (CCP §2033.280(c).) Counsel has not requested any sanction, but is entitled to an order that defendant reimburse plaintiff the filing fee of \$60; It is so ordered.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

LEMKE v. MERS INC. et al

21CV45420

DEFENSE MOTION TO EXPUNGE LIS PENDENS; PLAINTIFF MOTION FOR NEW TRIAL

This is one of three wrongful foreclosure cases filed by plaintiff in an attempt to regain ownership of a home he lost in foreclosure more than a decade ago. Plaintiff concedes (1) borrowing almost a half-million dollars, (2) not paying it back, (3) receiving Notices of Default and Trustee's Sale, (4) not curing the arrears, (5) not redeeming the property, (6) filing lawsuits in state and federal court to set aside the foreclosure sale, and (7) resisting eviction efforts. Plaintiff does not dispute that his deed of trust allowed for undisclosed assignments, that the foreclosure sale was free from procedural defects, and that the current owners qualify for BFP status. Nevertheless, plaintiff contends that the law of wrongful foreclosure has changed over the past decade in his favor, entitling him to try it all over again.

Defense Motion to Expunge Lis Pendens - Granted

Henry and Julie Martinez are the current owners of the home plaintiff lost in foreclosure. On 03/10/22, they caused to be filed and served a demurrer to all causes of action asserted against them in the operative pleading, to wit: the Third (wrongful foreclosure), Fourth (cancellation of instruments), Fifth (slander of title) and Seventh (quiet title) causes of action in plaintiff's First Amended Complaint.

On 05/12/22, while the demurrer was pending, plaintiff recorded in the chain of title for the subject property a Notice of Lis Pendens.

On 05/20/22, this Court issued an order sustaining, without leave to amend, the demurrer on all counts. A signed order, the functional equivalent of a judgment, was entered eleven days later.

On 06/13/22, Henry and Julie filed and served a motion to expunge the lis pendens. Plaintiff opposes the motion, contending that he was required to record the Notice, and that his motion for a new trial requires that the Notice remain of record. Neither contention is accurate.

A *lis pendens* is a recorded document giving constructive notice to the world that an action is pending in the courts which may have an impact on the litigants' right or title to the property. (See *Park 1000 Investment Group II v. Ryan* (2010) 180 Cal.App.4th 795, 807; *Formula Inc. v. Superior Court* (2008) 168 Cal.App.4th 1455, 1462; *Palmer v. Zaklama* (2003) 109 Cal.App.4th 1367, 1375-1376.) Anyone with an interest in real property may move a court for an order expunging a recorded lis pendens if (1) the court case upon which the lis pendens is based does not contain a real property claim, or (2) the party responsible for filing the lis pendens is unable to show by a preponderance of the evidence that he or she is more likely than not to prevail on the claim affecting right or title to the property. (CCP §§ 405.30-405.32; *Amalgamated Bank v. Superior Court* (2007) 149 Cal.App.4th 1003, 1007; *Shah v. McMahon* (2007) 148 Cal.App.4th 526, 529.) There is no dispute that this wrongful foreclosure case contained a real property claim, and that plaintiff was entitled (but never required) to record a